

- (v) reversion of a Railway servant, appointed on probation to any other Service, grade or post, to his permanent Service, grade or post during or at the end of the period of probation in accordance with the terms of his appointment or the rules and orders governing such probation;
- (vi) replacement of the services of a Railway servant, whose services had been borrowed from any other Ministry or Department of the Central Government or a State Government or an authority under the control of the Central Government or State Government, at the disposal of the Government or the authority from which the services of such Railway servant had been borrowed;
- (vii) compulsory retirement of a Railway servant in accordance with the provisions relating to his superannuation or retirement;
- (viii) termination of the services -
 - (a) of a Railway servant appointed on probation, during or at the end of the period of his probation, in accordance with the terms of his appointment or the rules and orders governing such probation, or
 - (b) of a temporary Railway servant in accordance with rule 301 contained in Volume I of the Indian Railway Establishment Code (Fifth Edition -1985), or
 - (c) of a Railway servant employed under an agreement, in accordance with the terms of such agreement;
- (ix) discharge of Railway servants -
 - (a) for inefficiency due to failure to conform to the requisite standard of physical fitness;
 - (b) on reduction of establishment.

7. **Disciplinary Authorities** -

- (1) The President may impose any of the penalties specified in Rule 6 on any Railway servant.
- (2) Without prejudice to the provisions of sub-rule (1), any of the penalties specified in Rule 6 may be imposed on a Railway servant by the authorities specified in Schedules I, II and III.
- (3) The disciplinary authority in the case of a Railway servant officiating in a higher post, shall be determined with reference to the officiating post held by him at the time of taking action.

8. **Authority to Institute Proceedings** -

- (1) the President or any other authority empowered by him, by general or special order, may -
 - (a) institute disciplinary proceedings against any Railway servant;
 - (b) direct a disciplinary authority to institute disciplinary proceedings against any Railway servant on whom that disciplinary authority is competent to impose, under these rules, any of the penalties specified in Rule 6.
- (2) A disciplinary authority competent under these rules to impose any of the penalties specified in clauses (i) to (iv) of Rule 6 may, subject to the provisions of clause (c) of sub-rule (1) of Rule 2 institute disciplinary proceedings against any Railway servant for the imposition of any of the penalties specified